

Joan I to the Aldees of Morella: *Compulsòria* to Appear in the Chancery

ACA, Cancillería, Registres, núm. 1826, ff. 150v-151r

Document Summary

Archival reference	ACA, Cancillería, Registres, núm. 1826, ff. 150v-151r
Date	1387 (day and month not legible in the transcribed portion; see Unresolved Ambiguities)
Language	Latin
Document type	Royal mandate / <i>compulsòria</i> (peremptory summons to appear in the royal chancery)
Issuing authority	Joan I, King of Aragon
Addressees	The <i>jurats</i> and <i>probi homines</i> of the <i>aldees</i> of Morella: Forcall, Cinctorres, Portell, Vilafranca, Castellfort, Cant[?], and Vallibona
Other parties	The universitat of the vila of Morella (acting through its síndic, Pere Vilba); Queen Violant de Bar (Yolans), royal consort; reference to the late King Pere (III/IV) and Queen Sibília
Subject	A long-running jurisdictional and fiscal dispute between the vila of Morella and its dependent <i>aldees</i> , originating in a sentence handed down at Tortosa under King Pere. The <i>aldees</i> having refused to obey Queen Violant's mandate to constitute proctors and submit to her arbitration, the king now peremptorily summons them to appear in his chancery within ten days to prosecute the cause, on pain of being declared contumacious and judged in absence — the cause to be heard and a definitive sentence promulgated covering both possession and ownership (<i>tam in possessorio quam in proprietate</i>).

Reconciled Transcription

f. 150v

Johannes [rex] etc. fidelibus nostris juratis [et] probis hominibus locorum et fforcall[?] de

Cinctores de Portell de Vilaffrancha de Castellfort de Cant[?] de Vallibona aldearum ville Morelle salutem et graciam. Licet[?] a nostra curia diebus preteritis memoria[?] non vos ignorare [putamus?] credimus qualiter nuper oblata supplicacione humili per syndicum dicte ville Morelle contra sentenciam latam in Civitate Dertuse [tempore?] domini Petri Regem Aragonum genitorem nostrum recordacionis eximie et Sibilia eius consorte super causa seu questione que diu[?] [habita?] fuit inter universitatem dicte ville Morelle ex parte una et vos et universitates dictarum aldearum ex altera super certis racionibus in dicta supplicacione ac processibus inde [secutis?] contentis et express[is?] [...] illustris Yolans Regina Aragonum consors nostra carissima cupiens[?] litem ipsam per viam amicabilem composicionis submovere[?] et penitus relevare per[?] tollendis et cessandis tediis[?] [et] dampnis[?] ac laboribus et expensis dictarum universitatum que occasione[?] litium [predictarum?] ad destructionem et ruinam [fere?] [ut?] deducte[?] per suas literas mandavit juratis et probis hominibus dicte ville Morelle et vobis eciam valde affectuose[?] ut syndicos et procuratores certos et [paratos?] constitueretis et constitueretis[?] ad compromittendum in posse ipsius Regine super omnibus et singulis [litibus?] et controversiis que [...] inde [...] Et quia dicte litere vobis ut certo audivimus fuere[?] per eandem [...] requisiti ut contenta in eis effectualiter compleretis vos tamen mandatis Reginalibus quod [salva vestra reverencia?] dicimus [...] [in neglectu?] ea facere non curantes nec quod pessimum fuit respondere eidem consorti nostre spon[ta]neos[?] de permissis de quibus summe [...] sumus [...] [unde?] ipsa Regina quamplurimum admirari [potuit?] et gravari[?]

f. 151r

cum nichil feramus molestius nichilque in subditis gravius reputemus quam regionum[?] in obediencia mandatorum. Cumque pars dicte ville Morelle que iam tamquam[?] obediens obtemperat[?] se parere jussibus[?] et mandatis eiusdem Regine velit nunc per regiam super hoc provideri[?] supplicacionis de nostri licencia et consensu [...] et que in huiusmodi [...] poterit fieri per nos de nostra plenitudine regie potestatis. Et propterea ad instanciam[?] et supplicacionem fidelis nostri Petri Vilba syndici dicte ville Morelle vos [omnes?] et quemlibet vestrum dicimus et mandamus firmiter et expresse quatenus infra X dies post presentacionem presentium in antea numerandos per vos vel legiptimum[?] syndicum aut syndicos plena potestate suffultos compareatis in Cancellaria nostra debite[?] processuri in causa dicte supplicacionis oblate contra dictam sentenciam per parte[?] dicte ville Morelle ut offertur[?]. Et in omnibus et singulis actibus eiusdem usque ad finem diffinitiv[am?] inclusive significantes vobis quod nisi comparueritis infra dictum terminum quem vobis et cuilibet vestrum perhemptorie[?] et per tribus edictis ac pro omnibus dilacionibus et terminis [...] laboribus et expensis huiusmodi [...] assignamus. Nos in dicta causa lapsis dictis terminis viso prius[?] recognito[?] ac diligenter examinato[?] processibus in consilio[?] dicti domini Regis genitoris nostri [revocatis ex tunc?][?] supplicacion[ibus?] coram ipso domino Rege in Civitate Dertuse oblat[is?] per parte dicti hominum aldearum predictarum contra suas dudum latas in Civitate Valencie[?] per parte universitatum[?] dicte ville [...] que proinde[?] huic consimilibus nos provide[?] summarie[?] et breviter ad ferendum et promulgandum super dicta causa sentenciam diffinitivam inclusive **tam**

in possessorio quam in proprietate[m] prout de foro et racione [invenerimus?] [provenerit?] faciendum vestri non obstante absencia et contumacia exigentem.¹

Annotated English Translation

John [by the grace of God king, etc.], to our faithful *jurats* and *probi homines* of the places and [the] Forcall,² of Cinctorres, of Portell, of Vilafranca, of Castellfort, of Cant[?], of Vallibona, *aldees* of the vila of Morella, greeting and grace.

Although in days past³ we believe it is not unknown to you from our court how recently, a humble supplication having been offered by the *síndic* of the said vila of Morella against the sentence handed down at the city of Tortosa⁴ in the time of⁵ the lord Pere, King of Aragon, our father of eminent memory, and Sibília his consort, concerning the cause or question which was long [in dispute]⁶ between the universitat of the said vila of Morella on the one part, and you and the universitats of the said *aldees* on the other, upon certain grounds contained and set forth in the said supplication and in the processes thereafter [following] [...]:

[that] the illustrious Yolant (Violant),⁷ Queen of Aragon, our most dear consort, desiring⁸ to remove this suit by way of an amicable settlement⁹ and entirely to relieve [the parties], by doing away with and putting an end to the vexations,¹⁰ [damages,] labors, and expenses of the said universitats — which by reason of the aforesaid litigation were being brought [almost] to [their] destruction and ruin — by her letters commanded the *jurats* and *probi homines* of the said vila of Morella, and you also, most affectionately, that you should constitute fixed and ready *síndics* and proctors¹¹ for submitting to arbitration (*ad compromittendum*) in the hands¹² of the said Queen concerning each and every [suit] and controversy that [...] thence [...].

And because, as we have heard for certain, the said letters [had been delivered] to you [and] you were required by her that the things contained in them be effectually fulfilled — you nevertheless, [saving your reverence]¹³ we say, [in neglect of] the Queen's mandates, did not care to do these things, nor — what was worst — to respond to our consort willingly¹⁴ concerning the matters entrusted, of which we are exceedingly [...]: whence the Queen herself was able to marvel greatly¹⁵ and to be aggrieved —

since we bear nothing more grievously, and reckon nothing more serious in [our] subjects, than [disobedience] of royal¹⁶ commands in the matter of obedience. And since the party of the said vila of Morella, which already, as an obedient [party], complies¹⁷ [and] submits itself to obey the orders and mandates of the same Queen, now wishes that provision be made in this matter by royal [authority],¹⁸ [the matter] of the supplication [proceeding] with our license and consent — and whatever can be done in a matter of this kind may be done by us out of the plenitude of our royal power —

therefore, at the instance and supplication of our faithful Pere Vilba,¹⁹ *síndic* of the said vila of Morella, we say and command you all and each of you, firmly and expressly, that within ten days

after the presentation of these presents, to be counted thenceforward, you, either in person or through a legitimate *síndic* or *síndics* furnished with full power, appear in our Chancery,²⁰ duly to prosecute the cause of the said supplication offered against the said sentence on behalf of²¹ the said vila of Morella, as is alleged; and [to be present] in each and every act thereof, up to and including the definitive end [of the cause].

[We] signify to you that, unless you appear within the said term — which [term] we assign to you and to each of you peremptorily and in lieu of three edicts,²² and in respect of all delays and terms, [...] [and] the labors and expenses of this kind [...] — we, in the said cause, the said terms having lapsed, having first seen, reviewed, and diligently examined the processes²³ in the council of the said lord King our father, [the supplications]²⁴ offered before the same lord King at the city of Tortosa on behalf of the said men of the aforesaid *aldees*, against those [sentences/supplications] formerly handed down at the city of Valencia²⁵ on behalf of the *universitats* of the said vila — [we] shall proceed, just as [is fitting] for these and the like, providently, summarily, and briefly, to bring and promulgate upon the said cause a definitive sentence, **both as to possession and as to ownership**,²⁶ according as we shall find [it to be] of law and reason; [this] being done notwithstanding your absence and contumacy, [the cause] so requiring.¹

Footnotes

Unresolved Ambiguities

1. **Date.** No legible day/month survives in the transcribed portion. The year is fixed to 1387 by internal evidence (Pere IV *recordacionis eximie*, i.e. deceased — he died January 1387 — and Joan I reigning). A precise date may be recoverable from the register's surrounding entries or a dating clause on a folio not imaged here. **Archival follow-up.**
2. **Sixth *aldea* (*Cant*[?]).** The sixth name in the address list (*de Cant*[?] *de Vallibona*) is unresolved. *Vallibona* (final) is confirmed by the researcher; the preceding name is not. Candidates among Morella's *aldees* should be checked against the manuscript reading; the word is short and the abbreviation unclear. **Archival follow-up.**
3. **Connective before *domini Petri* (f. 150v).** Read provisionally as [*tempore*?]; the HTR's "per Sempiternum" is rejected as a fabrication. The true reading governs how the Tortosa sentence is attributed to Pere's reign. **Verification needed on the manuscript.**
4. **First pair in the cost-doublet (*tediis* [*et*] *dampnis* vs *redditibus et oneribus*).** Adopted *tediis dampnis* on letterforms and formulaic grounds; not certain. [?]
5. **The opening protocol of f. 150v** (*Licet... memoria... non vos ignorare putamus credimus*) and the *salva vestra reverencia* / non-compliance clause are both partly garbled; several words rest on formulaic reconstruction rather than secure paleographic reading.

6. **The sentencing-review clause on f. 151r** (*viso prius recognito ac diligenter examinato processibus... revocatis ex tunc[?]. contra suas dudum latas in Civitate Valencie*) is the densest passage and the least secure. The Tortosa/Valencia layering of prior sentences and supplications is procedurally important and would benefit from hands-on collation and from reconstruction of the case history in reg. 1826 and adjacent registers. **Archival follow-up.**
 7. **Síndic's surname.** *Pere Vilba* confirmed by the researcher as a reading; prosopographical identification (Morellan council/notarial records, 1387) remains open. **Archival follow-up.**
 8. **Relationship to the dissertation argument.** Two elements are flagged above for substantive relevance: (a) Queen Violant's exercise of arbitral/mandatory authority and the treatment of disobedience to *reginal* mandate as grounds for royal compulsion; and (b) the king's plenary jurisdictional claim *tam in possessorio quam in proprietate*. Both bear on royal (and reginal) jurisdictional reach.
1. The closing words *faciendum vestri non obstante absencia et contumacia exhigentem* are supplied by the researcher to complete the sentence, the final portion of which was cut off in the manuscript image. The sense: the king will proceed to sentence "notwithstanding your absence, [the matter] requiring [it], your contumacy [notwithstanding]" — i.e. the threatened judgment in absence against contumacious defendants. The exact syntax of *exhigentem* (agreeing with an understood *causa / justicia?*) is somewhat loose; the functional meaning is secure. ↩ ↩²
 2. The seven addressees are the *aldees* (dependent townships) of Morella in Els Ports, in the north of the Kingdom of Valencia. Forcall, Cinctorres, Portell (de Morella), Vilafranca (del Maestrat / del Cid), Castellfort, and Vallibona are all securely identifiable members of Morella's *aldees*; the sixth, read here as *Cant[?]*, remains unresolved (see Unresolved Ambiguities). The administrative relationship between the cap de vila (Morella) and its *aldees* — and the recurrent friction over fiscal apportionment and jurisdiction — is precisely the matter at issue in this dispute. ↩
 3. The opening protocol (*Licet a nostra curia diebus preteritis... non vos ignorare... credimus*) is heavily abbreviated and partly conjectural. The functional sense is the standard "you are aware / it is not unknown to you that" preamble introducing the *narratio*. Individual words (*memoria, putamus*) are marked [?] in the transcription. ↩
 4. *in Civitate Dertuse* = at the city of Tortosa. This reading, recovered at Stage 2, resolves the recurring crux of the earlier transcription. Tortosa is named twice (here and on f. 151r) as the venue of the original sentence under King Pere; the place was an established locus of royal justice and *corts* in the Crown of Aragon. The first occurrence (f. 150v) is paleographically shorter than the clearer f. 151r instance and remains slightly less secure. ↩
 5. *[tempore?] domini Petri Regem* — the connective between *Dertuse* and *domini Petri* is uncertain. The HTR's "per Sempiternum" is a fabrication and has been discarded; *tempore* ("in the time of") is the likeliest resolution on sense, but the word is not clearly legible. The reference is to **Pere III of Catalonia-Aragon (Pere IV, "el Cerimoniós," r. 1336-1387)**, Joan

I's father, who died in January 1387; *recordacionis eximie* ("of eminent / illustrious memory") confirms he is deceased, consistent with a 1387 date after his death. **Sibília** is Sibília de Fortià, Pere's fourth wife and queen. ↵

6. *que diu [habita?] fuit* — "which was long [in dispute / litigated]." The verb is uncertain; *habita*, *agitata*, or *ducta* would all suit. The point is the protracted character of the dispute. ↵
7. **Violant de Bar** (Lat. *Yolans*), queen consort as wife of Joan I. Her active role here — intervening *motu proprio* by her own letters to push the parties toward an *amicabilis compositio*, receiving (or attempting to receive) proctors *ad compromittendum* in her own hands — is substantively significant: the document presents the queen exercising an arbitral/mediating authority in a jurisdictional dispute, and the *aldees*' refusal to obey *her* mandate is the proximate trigger for the king's peremptory intervention. This bears directly on questions of the queen's political authority and the reach of reginal command. **Flagged for the dissertation:** this is a concrete instance of Violant issuing binding mandates in a justice matter and of those mandates' disobedience being treated by the king as an affront warranting royal compulsion. ↵
8. *cupiens* ("desiring") is adopted over the Stage 1 *aspiciens*; the HTR's reading makes better grammatical and formulaic sense (desiring *to remove the suit*), though the participle is marked [?] on the manuscript. ↵
9. *via amicabile compositionis* — the route of amicable settlement, i.e. arbitration/composition as an alternative to continued litigation. *ad compromittendum in posse ipsius Regine* below specifies the mechanism: the parties were to submit to binding arbitration (*compromissum*) placed "in the hands" (*in posse*) of the queen as arbiter. ↵
10. *tediis [et] dampnis ac laboribus et expensis* — "vexations [and] damages, labors and expenses." The closing doublet *laboribus et expensis* is secure; the first pair is the crux. *tediis dampnis* (HTR) is preferred over the Stage 1 *redditibus et oneribus* on the letterforms (initial tall *t*-) and as a well-attested formula in the "relieve the parties of the costs of litigation" topos, but both members remain [?]. ↵
11. *sindicos et procuratores certos et [paratos?] constitueretis... ad compromittendum* — the queen's letters required the *aldees* to appoint named, ready síndics and proctors empowered to enter into the *compromissum*. The doubled *constitueretis* in the manuscript is likely a scribal repetition (the HTR reads *constitueretis et compromitteretis*); the second instance is marked [?]. ↵
12. *in posse ipsius Regine* — "in the power/hands of the Queen." The technical sense is that the arbitration is lodged with the queen as arbiter, the parties binding themselves to her award. ↵
13. *[salva vestra reverencia?]* — "saving your reverence," a deferential formula softening the reproach. The reading is conjectural; the surrounding clause (the *aldees*' failure to obey) is partly garbled in both transcription and HTR. ↵

14. *respondere eidem consorti nostre spon[ta]neos[?] de permissis* — "to respond to our consort willingly concerning the matters entrusted." This passage resolves an earlier Stage 1 error: what was provisionally read as a personal name ("Johannes de [humilis]") is better understood as *spon[ta]neos / sponte de permissis* (*de permissis* = "concerning the things entrusted/permitted"). No proper name is now read here. The reading remains [?]. ↵
15. *quamplurimum admirari [potuit?] et gravari* — "was able to marvel greatly and to be aggrieved." The clause expresses the queen's displeasure at the *aldees'* non-compliance, leading into the king's own statement of grievance at the top of f. 151r. ↵
16. *quam regiorum in obediencia mandatorum* — the syntax is compressed; the sense is that nothing is reckoned more serious in subjects than [disobedience] in the matter of obeying royal commands. *regiorum* [?] (or *regalium*) modifies *mandatorum*. The sentiment is a standard expression of the duty of obedience to royal mandate. ↵
17. *que iam tamquam obediens obtemperat se parere jussibus et mandatis* — the contrast with the *aldees* is pointed: the vila of Morella is cast as the *obedient* party that has already submitted to the queen's orders, whereas the *aldees* have refused. *tamquam* and *obtemperat* are adopted from the HTR for sense but marked [?]; the Stage 1 *obtulerat* is paleographically close. ↵
18. *velit nunc per regiam super hoc provideri* — Morella now seeks that provision be made by royal authority, the king's intervention being sought because reginal mandate alone failed to compel the *aldees*. The clause is syntactically loose and partly conjectural. ↵
19. **Pere Vilba** (*Petri Vilba*), síndic of the vila of Morella. The surname is confirmed by the researcher's reading of the manuscript as *Vilba* (the HTR's "Bilba" being the same word with B/V equivalence; the Stage 1 "Vidal" is withdrawn). A candidate for prosopographical identification in Morellan notarial/council records of 1387. ↵
20. The summons is to appear *in Cancellaria nostra* — the royal Chancery — to prosecute the cause to a definitive sentence. This is a *compulsòria*: a peremptory order to appear, with the threat of judgment in absence. ↵
21. *contra dictam sentenciam per parte dicte ville Morelle ut offertur* — i.e. the supplication is prosecuted *against* the earlier sentence, on behalf of Morella. Note the consistent *contra sentenciam* construction (corrected at Stage 2 from the Stage 1 *cum sentencia*): the proceeding is an opposition/appeal against the Tortosa judgment. ↵
22. *perhemptorie et per tribus edictis* — "peremptorily and in place of three edicts (citations)." A standard formula by which a single peremptory citation is declared to have the force of the three successive citations ordinarily required before a contumacy judgment; it accelerates the process. Coupled with *pro omnibus dilacionibus et terminis*, it forecloses the defendants' procedural delays. ↵
23. *viso prius recognito ac diligenter examinato processibus* — "having first seen, reviewed, and diligently examined the processes [of the cause]." Standard language for the judge's review of the case file before sentencing. The participles are nominative-absolute in sense (the king as judge); the clause is partly garbled and several words are [?]. ↵

24. The clause naming what was offered before King Pere at Tortosa, *contra suas dudum latas in Civitate Valencie*, is heavily abbreviated. The Stage 2 HTR's *revocatis ex tunc* is uncertain; the structure appears to set the *aldees'* supplications offered at Tortosa against earlier sentences/supplications handed down at Valencia on Morella's behalf. The whole passage is marked [?] and is a candidate for hands-on verification. ↵
25. *in Civitate Valencie* — at the city of Valencia, named as the venue of the earlier sentence(s) handed down on behalf of the universitats of Morella, as distinct from the Tortosa proceeding. The two venues (Tortosa and Valencia) and the layering of sentences/supplications between them are central to the procedural history and would repay reconstruction from the registers. ↵
26. *tam in possessorio quam in proprietate[m]* — "both as to possession and as to ownership." This is the substantively loaded phrase the HTR had dissolved into nonsense ("tum in jussio quam in judiciariis"); it has been restored. The distinction between the possessory (*possessorium*) and petitory/proprietary (*proprietas*) actions is a core feature of the *ius commune* procedure: the king asserts that his definitive sentence will dispose of **both** the question of possession and the question of right/ownership in the disputed matter — a comprehensive jurisdictional claim. **Flagged for the dissertation:** this is direct evidence of the reach of royal jurisdiction, the king arrogating to the chancery a plenary determination *in possessorio* and *in proprietate* over a dispute that had passed through Tortosa, Valencia, and reginal arbitration. ↵